

Tentative Rulings for July 27, 2026 Department 4

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 4 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 533 0910**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2304403	KANDILIAN vs BMW NORTH AMERICA, LLC	MOTION TO DISQUALIFY CLARK HILL LLP AS COUNSEL FOR DEFENDANT

Tentative Ruling:

DENY the Motion without prejudice. SUSTAIN Plaintiff's objection to the unpublished opinion from the Los Angeles County Superior Court relied upon by Defense counsel. SUSTAIN Defendant's evidentiary objections to Plaintiff's Reply.

California Rules of Professional Conduct Rule 4.2 provides:

- (a) In representing a client, a lawyer shall not communicate directly or indirectly about the subject of the representation with a person the lawyer knows to be represented by another lawyer in the matter, unless the lawyer has the consent of the other lawyer.

The evidence here shows that attorney Carrie Shumake was never employed by Clark Hill ("CH") such that an attorney-client relationship existed between CH and Plaintiff. Shumake's new employment was contingent on Shumake obtaining waivers from the current clients of American Lemon Law Group, LLC. ("ALLG"). (Tracy Decl., Exh.1, Para.2.) CH Assistant General Counsel Jacqueline Roe confirms that Shumake's job offer was rescinded because Shumake was unable to obtain waivers from her former ALLG clients and that "Shumake was never employed, on staff, or associated as counsel" with CH. (Roe Decl., Paras.5-6.) Because Shumake was never a CH employee, it cannot be said that CH had an attorney-client relationship with Plaintiff such that CH would utilize information obtained from Shumake against Plaintiff. By the plain language of Rule 4.2(a), CH was not "communicating directly or indirectly about the subject of the representation with a person the lawyer knows to be represented by another lawyer."

Moreover, the evidence does not support the existence of an agency between CH and Shumake. Roe's email to Shumake on February 2, 2026, states, "I want to be clear that I can't help guide you on how to obtain waivers. I'm internal counsel for Clark Hill, and I can't provide legal advice to lateral candidates. You may wish to consider obtaining your own legal counsel." (Roe Decl., Exh.A.) This email shows that there was no consent by CH for Shumake to act on CH's behalf and subject to CH's control. "Agency is the relationship which results from the manifestation of consent by one person to another that the other shall act on his behalf and subject to his control, and consent by the other to so act." (*Gordon v. ARC Manufacturing, Inc.* (2019) 43 Cal.App.5th 705, 718.)

2.

CASE #	CASE NAME	HEARING NAME
CVRI2501747	GREENE vs ACOSTA	MOTION TO SET ASIDE DISMISSAL ON COMPLAINT

Tentative Ruling:

GRANT

Dismissal of 5/25/26 is set aside. Plaintiff is ordered to file the default judgment packet forthwith.

Matter is set for an OSC: Re Dismissal for failure to file the default judgment packet, to be heard on:

September 28, 2026, at 8:30am, D-4.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2504126	CARONNA vs CALIFORNIA BAPTIST UNIVERSITY	MOTION TO COMPEL ANSWER/RESPONSE TO FORM INTERROGATORIES, ANSWER/RESPONSE TO SPECIAL INTERROGATORIES

Tentative Ruling:

Continue the Motion to September 10, 2026, at 8:30am, D-4.

Plaintiff has not sufficiently met her “meet and confer” obligations under the Code of Civil Procedure. The Motion is being continued so that Plaintiff can properly comply with CCP § 2016.040, which states in pertinent part;

- (a) A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt...*either in person, by telephone, or by videoconference*, to informally resolve each issue presented by the Motion. (emphasis added)

Here, Plaintiff sent a meet and confer letter (by email), but did not speak in person, or by telephone or video conference, with any representative of Defendant before filing her Motion.

Plaintiff is Ordered to comply with CCP§ 2016.040, and to submit a Supplemental Declaration at least 5 court days before the next hearing date, outlining the efforts she made to comply with her meet and confer obligations, and setting forth the unresolved issues still to be determined by the court.